

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2204259

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: G. MARTIN

PLAINTIFF: JENNIFER SWIFT

vs.

DEFENDANT: UNITED PARCEL SERVICE,
INC., ET AL

NATURE OF PROCEEDINGS: MOTION – COMPEL - DISCOVERY FACILITATOR
PROGRAM

RULING

Both parties have appeals pending with the California Court of Appeal, First Appellate District. Defendant filed its Notice of Appeal on March 30, 2026. Defendants United Parcel Service, et al., filed an appeal to the court's order issued on March 4, 2026. Plaintiff Jenniffer Swift filed a Petition for Writ of Mandate to an order issued by Hon. Andrew Sweet on March 2, 2026. The matter was transferred from Judge Sweet to this department on January 2, 2026.

The court entered an order staying execution and enforcement of prior orders on May 8, 2026.

The pending motions to compel filed by the Plaintiff are also stayed, pending the proceedings before the appellate court.

A Case Management Conference is set for November 18, 2026, at 9 a.m. in this department, re Status of Appeal.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0002210

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: LESTER PETRACCA

vs.

DEFENDANT: ELIZABETH THIERIOT,
ET AL

NATURE OF PROCEEDINGS: MOTION – OTHER: FOR RELIEF FROM VOID
JUDGMENT

RULING

This court entered orders denying Defendant Elisabeth Thieriot's motion to vacate default and default judgment and "motion to expunge lien, vacate judgement, declare void orders, and order restitution" on June 5, 2026. The entry of order was followed five days later, on June 10, 2026, with the Defendant filing the motion at bar, in which she seeks the same relief.

Plaintiff Lester Petracca opposes the motion once again, arguing that the filing is now the sixth separate filing from Ms. Thieriot challenging the Court's jurisdiction over the case. Plaintiff asks the court to strike or disregard the motion because:

1. the Memorandum violates this Court's November 14, 2025 order prohibiting Ms. Thieriot from filing any document in this case (except a motion to set aside the default). Ms. Thieriot has already filed several motions to vacate, and has therefore exhausted her authorized filings.
2. the Memorandum is untimely under Code of Civil Procedure ("CCP") section 1005(b), as Ms. Thieriot filed the Memorandum five days after the statutory deadline for a June 5, 2026 hearing.
3. the Memorandum exceeds the 15 page limit imposed by California Rules of Court ("CRC"), rule 3.1113(d), as Ms. Thieriot has already filed approximately 60 pages of briefing in support of her various motions to vacate.
4. the Memorandum merely rehashes the same "void judgment" and "lack of jurisdiction" theories this Court has already rejected, and the authorities Ms. Thieriot cites are distinguishable and do not support the relief she seeks.

For reasons stated in the court's order entered on June 5, 2026, the court strikes request and denies the relief requested therein.

Counsel for Plaintiff to prepare the order.